

The U.P. Molasses Advisory Committee Rules, 1965

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State of Uttar Pradesh - Act

The U.P. Molasses Advisory Committee Rules, 1965

UTTAR PRADESH

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The U.P. Molasses Advisory Committee Rules, 1965

Rule THE-U-P-MOLASSES-ADVISORY-COMMITTEE-RULES-1965 of 1965

Published on 22 October 1965

Commenced on 22 October 1965

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The U.P. Molasses Advisory Committee Rules, 1965

Published Vide U.P. Government Notification No. 4739-E/13-251-65, dated 22nd October, 1965, published in U.P. Gazette, Extraordinary, dated October 31, 1965, page 4

In exercise of powers under clauses (a) and (b) of sub-section (2) of Section 22 and Section 3 of the U.P. Sheera Niyantran Adhiniyam, 1964 (U. P. Act No. 24 of 1964), the Governor of the Uttar Pradesh is pleased to make the following rules, the same having been previously published with Government Notification No. 2606-E/13-251-65, dated September 25, 1965, as required under sub-section (1) of Section 22 of the aforesaid Act :

1.

Short title and commencement.

(1)

These rules shall be called the Uttar Pradesh Molasses Advisory Committee Rules, 1965.

(2)

These rules shall come into force with effect from the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless there is anything repugnant in the context,-

(i)

"Act" means the U. P. Sheera Niyantran Adhiniyam, 1964 (U. P. Act No. XXIV of 1964);

(ii)

"Section" means section of the U. P. Sheera Niyantran Adhiniyam, 1964; and

(iii)

"Committee" means Advisory Committee constituted under Section 3 of the Act.

3.

[Constitution.

[Substituted by Notification No. 3623-E-2/XII-93, 178-93, dated 25th August, 1993, published in U. P. Gazette (Extraordinary), Part 4, Sec (Kha), dated 25th August, 1993.]

(1)

The Advisory Committee to be constituted under Section 3 of the Act shall consist of :

(i)

the Controller who shall be ex officio Chairman;

(ii)

the Assistant Excise Commissioner, Incharge of Molasses at the Headquarters of the Excise Commissioner, Uttar Pradesh, who shall be ex officio Secretary;

(iii)

the Director of Industries, Uttar Pradesh or his representative not below the rank of Deputy Director of Industries;

(iv)

the Cane Commissioner, Uttar Pradesh, or his representative not below the rank of Deputy Cane Commissioner;

(v)

three representatives of sugar factories in Uttar Pradesh to be nominated by the Indian Sugar Mill's Association (U. P. Branch);

(vi)

three representatives of distilleries in Uttar Pradesh to be nominated by the Uttar Pradesh Distillers Association;

(vii)

one representative of the alcohol-based industries in Uttar Pradesh to be nominated by the Uttar Pradesh Alcohol-Based Industries Development Association;

(viii)

one representative of Moulding and Foundry Industry in Uttar Pradesh to be nominated by the Excise Commissioner, Uttar Pradesh; and

(ix)

Managing Director, the Uttar Pradesh Cooperative Sugar Factories Federation Ltd.

(2)

If a representative is not nominated by the concerned Association under clause (v), (vi) or (vii) of sub-rule (1) within the time specified in that behalf by the State Government it shall be lawful for the State Government to nominate the representative or representatives, as the case may be, under that clause.]

4.

The non-official member shall be entitled to travelling and daily allowances admissible to Class I Officers.

5.

Appointment to be notified.

- The appointment of the members of the committee including that of the Chairman shall be notified by the State Government in the Gazette.

6.

[Term of the office of the members and reconstitution of the Committee.

[Substituted by Notification No. 3626-E-2/XII-93-178-93, dated 25th August, 1993, published in U. P. Gazette (Extraordinary). Part 4, Sec (Kha), dated 25th August, 1993.]

- The term of office of the members of the committee referred to in clauses (v), (vi), (vii) and (viii) of sub-rule (1) of Rule 3 shall be two years from the date of their appointment and the Controller shall, at least three months before the expiry of the term of the members, move the State Government for appointment of new members. The reconstituted Committee shall also be notified in the Gazette.]

7.

Vacancy caused by death, resignation or removal of members.

(a)

If any member of the committee wishes to resign, he may tender his resignation in writing to the State Government through the Chairman and on acceptance of the resignation by State Government, he shall, with effect from the date of receipt of intimation of acceptance from the Chairman, cease to be a member of the committee.

(b)

The State Government may remove from the committee any member who in their opinion has abused his position as a member of the committee or is not considered fit to be member of the Committee :

Provided that when the State Government propose to remove any member, an opportunity to explain his conduct shall be given to the member concerned.

(c)

Any vacancy caused by resignation, removal or death of a member of the committee shall be filled in by the State Government for the remainder of the term of his predecessor's term of office and shall be notified in the Gazette.

8.

Quorum for a meeting.

- The quorum for a meeting of the committee shall be four, excluding the Chairman and the Secretary. The functions of the committee shall not be suspended on account of any vacancy in the committee, provided that the required quorum is formed. If any meeting is adjourned for want of quorum, the adjourned meeting may be held after 15 days' notice and will require no quorum.

9.

Time, place and agenda for the meeting of the committee.

(a)

The meeting of the committee shall be held twice a year. The committee shall meet once after August 31 but not later than October 31, and again after April 30, but not later than July 15.

(b)

Notwithstanding anything contained by the foregoing rules, the committee may meet as and when convened by the Chairman or upon a requisition in writing to the Chairman by not less than eight members.

10.

(1)

The date and time of every meeting shall be fixed by the Chairman and intimated to all the members at least 15 days in advance.

(2)

The Secretary shall prepare the agenda for the meeting and shall supply a copy thereof to every member at least seven days before the date fixed for the meeting :

Provided that the Chairman may in his discretion allow discussion of any matter not included in the agenda.

(3)

Resolutions shall be passed by a majority vote of the members present at the meeting. The Chairman shall have the casting vote in the event of equality of votes.

(4)

The Secretary shall prepare the minutes of the meetings and send a copy thereof to the members of the committee for confirmation.

11.

Duties of the Advisory Committee.

- The Chairman shall give due consideration to the resolutions passed by the Committee and forward it to the State

Government for orders together with a copy of the proceedings and his recommendations.

12.

All communications to the committee shall be addressed to the Assistant Excise Commissioner (Molasses)-cum-Secretary, Allahabad.

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